

## End-User License Agreement ("Agreement")

Last updated: August 08, 2024

Please read this End-User License Agreement carefully before clicking the "I Agree" button, downloading or using Jumper.de.

## Interpretation and Definitions

### Interpretation

The words of which the initial letter is capitalized have meanings defined under the following conditions. The following definitions shall have the same meaning regardless of whether they appear in singular or in plural.

### Definitions

For the purposes of this End-User License Agreement:

**Agreement** means this End-User License Agreement that forms the entire agreement between You and the Company regarding the use of the Application.

**Application** means the software program provided by the Company downloaded by You to a Device, named Jumper.de

**Company** and **Processor** (referred to as either "the Company", "We", "Us" or "Our" in this Agreement) refers to Sven Vierroth, Paulinenstr. 7, 72555 Metzingen, Germany.

**Content** refers to content such as text, images, or other information that can be posted, uploaded, linked to or otherwise made available by You, regardless of the form of that content.

**Country** refers to: Baden-Württemberg, Germany

**Device** means any device that can access the Application such as a computer, a cellphone or a digital tablet.

**Third-Party Services** means any services or content (including data, information, applications and other products services) provided by a third-party that may be displayed, included or made available by the Application.

**You** and **Controller** means the individual accessing or using the Application or the company, or other legal entity on behalf of which such individual is accessing or using the Application, as applicable.

## Acknowledgment

By clicking the "I Agree" button, downloading or using the Application, You are agreeing to be bound by the terms and conditions of this Agreement. If You do not agree to the terms of this Agreement, do not click on the "I Agree" button, do not download or do not use the Application.

This Agreement is a legal document between You and the Company and it governs your use of the Application made available to You by the Company.

The Application is licensed, not sold, to You by the Company for use strictly in accordance with the terms of this Agreement.

## License

### Scope of License

The Company grants You a revocable, non-exclusive, non-transferable, limited license to download, install and use the Application strictly in accordance with the terms of this Agreement.

The license that is granted to You by the Company is solely for your personal, non-commercial purposes strictly in accordance with the terms of this Agreement.

### License Restrictions

You agree not to, and You will not permit others to:

License, sell, rent, lease, assign, distribute, transmit, host, outsource, disclose or otherwise commercially exploit the Application or make the Application available to any third party.

Remove, alter or obscure any proprietary notice (including any notice of copyright or trademark) of the Company or its affiliates, partners, suppliers or the licensors of the Application.

## Content

### Content Restrictions

The Company is not responsible for the entries, information or content of the Application's users. You expressly understand and agree that You are solely responsible for the Content and for all activity that occurs under Your account, whether done so by You or any third person using your account.

You may not transmit any Content that is unlawful, offensive, upsetting, intended to disgust, threatening, libelous, defamatory, obscene or otherwise objectionable. Examples of such objectionable Content include, but are not limited to, the following:

- Unlawful or promoting unlawful activity.
- Defamatory, discriminatory, or mean-spirited content, including references or commentary about religion, race, sexual orientation, gender, national/ethnic origin, or other targeted groups.
- Spam, machine generated content or randomly generated content, constituting unauthorized or unsolicited advertising, chain letters, any other form of unauthorized solicitation, or any form of lottery or gambling.
- Containing or installing any viruses, worms, malware, trojan horses, or other content that is designed or intended to disrupt, damage, or limit the functioning of any software, hardware or telecommunications equipment or to damage or obtain unauthorized access to any data or other information of a third person.

- Infringing on any proprietary rights of any party, including patent, trademark, trade secret, copyright, right of publicity or other rights.
- Impersonating any person or entity including the Company and its employees or representatives.
- Violating the privacy of any third person.
- False information and features.

The Company reserves the right, but not the obligation, to, in its sole discretion, determine whether or not any Content is appropriate and complies with this Agreement, to refuse or remove any Content. The Company further reserves the right to make formatting and edits and change the manner of any Content. The Company can also limit or revoke the use of the Application if You post such objectionable Content.

As the Company cannot control all content posted by users and/or third parties on the Application, you agree to use the Application at your own risk. You understand that by using the Application You may be exposed to content that You may find offensive, indecent, incorrect or objectionable, and You agree that under no circumstances will the Company be liable in any way for any content, including any errors or omissions in any content, or any loss or damage of any kind incurred as a result of your use of any content.

### **Intellectual Property**

The Application, including without limitation all copyrights, patents, trademarks, trade secrets and other intellectual property rights are, and shall remain, the sole and exclusive property of the Company.

The Company shall not be obligated to indemnify or defend You with respect to any third party claim arising out of or relating to the Application. To the extent the Company is required to provide indemnification by applicable law, the Company shall be solely responsible for the investigation, defense, settlement and discharge of any claim that the Application or your use of it infringes any third party intellectual property rights.

### **Your Suggestions**

Any feedback, comments, ideas, improvements or suggestions provided by You to the Company with respect to the Application shall remain the sole and exclusive property of the Company.

The Company shall be free to use, copy, modify, publish, or redistribute the Suggestions for any purpose and in any way without any credit or any compensation to You.

### **Modifications to the Application**

The Company reserves the right to modify, suspend or discontinue, temporarily or permanently, the Application or any service to which it connects, with or without notice and without liability to You.

### **Updates to the Application**

The Company may from time to time provide enhancements or improvements to the features/functionality of the Application, which may include patches, bug fixes, updates, upgrades and other modifications.

Updates may modify or delete certain features and/or functionalities of the Application. You agree that the Company has no obligation to (i) provide any Updates, or (ii) continue to provide or enable any particular features and/or functionalities of the Application to You.

You further agree that all updates or any other modifications will be (i) deemed to constitute an integral part of the Application, and (ii) subject to the terms and conditions of this Agreement.

### **Maintenance and Support**

The Company does not provide any maintenance or support for the download and use of the Application. To the extent that any maintenance or support is required by applicable law, the Company shall be obligated to furnish any such maintenance or support.

### **Third-Party Services**

The Application may display, include or make available third-party content (including data, information, applications and other products services) or provide links to third-party websites or services.

You acknowledge and agree that the Company shall not be responsible for any Third-party Services, including their accuracy, completeness, timeliness, validity, copyright compliance, legality, decency, quality or any other aspect thereof. The Company does not assume and shall not have any liability or responsibility to You or any other person or entity for any Third-party Services.

You must comply with applicable Third parties' Terms of agreement when using the Application. Third-party Services and links thereto are provided solely as a convenience to You and You access and use them entirely at your own risk and subject to such third parties' Terms and conditions.

### **Privacy Policy**

The Company collects, stores, maintains, and shares information about You in accordance with Our Privacy Policy: <https://jumper.de/dsgvo>

By accepting this Agreement, You acknowledge that You hereby agree and consent to the terms and conditions of Our Privacy Policy.

### **Term and Termination**

This Agreement shall remain in effect until terminated by You or the Company. The Company may, in its sole discretion, at any time and for any or no reason, suspend or terminate this Agreement with or without prior notice.

This Agreement will terminate immediately, without prior notice from the Company, in the event that you fail to comply with any provision of this Agreement. You may also terminate this Agreement by contacting support@jumper.de with the subject "Terminate EULA" and deleting the Application and all copies thereof from your Device or from your computer.

Upon termination of this Agreement, You shall cease all use of the Application and delete all copies of the Application from your Device.

Termination of this Agreement will not limit any of the Company's rights or remedies at law or in equity in case of breach by You (during the term of this Agreement) of any of your obligations under the present Agreement.

This Agreement shall remain valid after termination of the End-User License Agreement for as long as the Processor has personal data which have been forwarded to him by the Controller or which he has collected for the Controller.

The Processor shall return all documents, data, and data carriers provided to it to the Controller after the termination of the End-User License Agreement or at any time at the Controller's request, or delete them within 30 days of the Controller's request unless there is an obligation to store the personal data under EU law or the law of the Federal Republic of Germany.

The Processor shall provide documentary evidence of the proper deletion.

Upon termination of this Agreement, the End-User License Agreement shall also terminate, provided that it cannot be performed without the processing of personal data.

### **Indemnification**

You agree to indemnify and hold the Company and its parents, subsidiaries, affiliates, officers, employees, agents, partners and licensors (if any) harmless from any claim or demand, including reasonable attorneys' fees, due to or arising out of your: (a) use of the Application; (b) violation of this Agreement or any law or regulation; or (c) violation of any right of a third party.

### **No Warranties**

The Application is provided to You "AS IS" and "AS AVAILABLE" and with all faults and defects without warranty of any kind. To the maximum extent permitted under applicable law, the Company, on its own behalf and on behalf of its affiliates and its and their respective licensors and service providers, expressly disclaims all warranties, whether express, implied, statutory or otherwise, with respect to the Application, including all implied warranties of merchantability, fitness for a particular purpose, title and non-infringement, and warranties that may arise out of course of dealing, course of performance, usage or trade practice. Without limitation to the foregoing, the Company provides no warranty or undertaking, and makes no representation of any kind that the Application will meet your requirements, achieve any intended results, be compatible or work with any

other software, applications, systems or services, operate without interruption, meet any performance or reliability standards or be error free or that any errors or defects can or will be corrected.

Without limiting the foregoing, neither the Company nor any of the company's provider makes any representation or warranty of any kind, express or implied: (i) as to the operation or availability of the Application, or the information, content, and materials or products included thereon; (ii) that the Application will be uninterrupted or error-free; (iii) as to the accuracy, reliability, or currency of any information or content provided through the Application; or (iv) that the Application, its servers, the content, or e-mails sent from or on behalf of the Company are free of viruses, scripts, trojan horses, worms, malware, timebombs or other harmful components.

Some jurisdictions do not allow the exclusion of certain types of warranties or limitations on applicable statutory rights of a consumer, so some or all of the above exclusions and limitations may not apply to You. But in such a case the exclusions and limitations set forth in this section shall be applied to the greatest extent enforceable under applicable law. To the extent any warranty exists under law that cannot be disclaimed, the Company shall be solely responsible for such warranty.

### **Limitation of Liability**

Notwithstanding any damages that You might incur, the entire liability of the Company and any of its suppliers under any provision of this Agreement and your exclusive remedy for all of the foregoing shall be limited to the amount actually paid by You for the Application.

To the maximum extent permitted by applicable law, in no event shall the Company or its suppliers be liable for any special, incidental, indirect, or consequential damages whatsoever (including, but not limited to, damages for loss of profits, loss of data or other information, for business interruption, for personal injury, loss of privacy arising out of or in any way related to the use of or inability to use the Application, third-party software and/or third-party hardware used with the Application, or otherwise in connection with any provision of this Agreement), even if the Company or any supplier has been advised of the possibility of such damages and even if the remedy fails of its essential purpose.

Some jurisdictions do not allow the exclusion of certain warranties or the limitation or exclusion of liability for incidental or consequential damages. Therefore, some of the above limitations and disclaimers may not apply to You. In such jurisdictions, the Company's liability shall be limited to the greatest extent permitted by law.

### **Severability and Waiver**

#### **Severability**

If any provision of this Agreement is held to be unenforceable or invalid, such provision will be changed and interpreted to accomplish the objectives of such provision to the greatest

extent possible under applicable law and the remaining provisions will continue in full force and effect.

### **Waiver**

Except as provided herein, the failure to exercise a right or to require performance of an obligation under this Agreement shall not affect a party's ability to exercise such right or require such performance at any time thereafter nor shall the waiver of a breach constitute a waiver of any subsequent breach.

### **Product Claims**

The Company does not make any warranties concerning the Application.

### **United States Legal Compliance**

You represent and warrant that (i) You are not located in a country that is subject to the United States government embargo, or that has been designated by the United States government as a "terrorist supporting" country, and (ii) You are not listed on any United States government list of prohibited or restricted parties.

### **Changes to this Agreement**

The Company reserves the right, at its sole discretion, to modify or replace this Agreement at any time. If a revision is material we will provide at least 30 days' notice prior to any new terms taking effect. What constitutes a material change will be determined at the sole discretion of the Company.

By continuing to access or use the Application after any revisions become effective, You agree to be bound by the revised terms. If You do not agree to the new terms, You are no longer authorized to use the Application.

### **Governing Law**

The laws of the Country, excluding its conflicts of law rules, shall govern this Agreement and your use of the Application. Your use of the Application may also be subject to other local, state, national, or international laws.

### **DPA - Data Processing Addendum**

**Data Processing Agreement (DPA) pursuant to Art. 28 (3) GDPR between You and the Company (collectively also "Parties").**

#### **1 Subject Of The Agreement**

1. The Processor shall provide the Controller with software solutions in accordance with the End-User License Agreement. In doing so, the Processor shall obtain access to personal data and shall process such data exclusively on behalf of and in accordance with the instructions of the Controller. The scope and purpose of the data processing by the Processor are set out in the End-User License Agreement. The Controller is solely

responsible for assessing the permissibility of the data processing in accordance with Art. 6 (1) GDPR.

2. The Parties conclude the present agreement to specify the mutual rights and obligations under data protection law. In case of doubt, the provisions of this Agreement shall take precedence over the provisions of the End-User License Agreement.
3. The provisions of this Agreement shall apply to all activities related to the End-User License Agreement in which the Processor and its employees or persons authorized by the Processor come into contact with personal data originating from or collected for the Controller or otherwise processed on the Controller's behalf.
4. The term of this Agreement shall be based on the term of the End-User License Agreement unless the following provisions give rise to obligations or rights of termination going beyond this.
5. The provision of the contractually agreed data processing usually takes place in a member state of the European Union or another contracting state of the Agreement on the European Contractual Area (Decision 94/1/EC). If the Processor transfers Personal Data to subcontractors outside the EU or the EEA, they have previously agreed to comply with the standard data protection clauses pursuant to Commission Implementing Decision (EU) 2021/914 of 4.6.2021 and thus ensure an adequate level of data protection within the meaning of Art. 46 (2) lit. c GDPR.

## **2 Type Of Data Processed**

The personal data to which the Processor will have access in the course of the performance of the End-User License Agreement may include this data of You:

- Name and Surname
- Employing Company
- Employee Position
- Phone Number
- E-mail Address
- Internet Protocol (IP) Address
- Location

## **3 Controller's Right Of Instruction**

6. The Processor may only collect, use or otherwise process data within the scope of the End-User License Agreement and in accordance with the instructions of the Controller; this applies in particular with regard to the transfer of personal data to a third country or to an international organization. If the Processor is required by the law of the European Union or the Member States to which it is subject to carry out further processing, it shall notify the Controller of these legal requirements prior to the processing.
7. The instructions of the Controller are initially defined by this Agreement and may thereafter be amended, supplemented or replaced by the Controller by individual written instructions. The authorized contact persons of each Party and the



communication channel to be used are shown in Annex 2. Any changes shall be taken into account in a timely manner.

8. All instructions issued shall be documented by both the Controller and the Processor and shall be retained for the duration of their validity and subsequently for three additional full calendar years.
9. If the Processor is of the opinion that an instruction of the Controller violates data protection provisions, it shall notify the Controller thereof without undue delay. The Processor shall be entitled to suspend the implementation of the relevant instruction until it is confirmed or amended by the Controller. The Processor may refuse to implement an instruction that is obviously unlawful.

#### **4 Basic Obligations Of The Processor**

10. The Processor is obliged to observe the legal provisions on data protection and not to disclose information obtained from the area of the Controller to third parties or expose it to their access. Documents and data shall be secured against disclosure to unauthorized persons, taking into account the state of the art.
11. The Processor shall design the internal organization in its area of responsibility in such a way that it meets the special requirements of data protection. It shall ensure that it has taken all appropriate technical and organizational measures (TOMs) to adequately protect the data of the Controller pursuant to Art. 32 GDPR. The Processor is entitled to adapt measures to technical and organizational developments, provided that they do not fall short of the agreed standards.
12. The Processor has appointed a contact person for data protection.
13. The persons employed in the data processing by the Processor are prohibited from collecting, using or otherwise processing personal data without authorization. The Processor shall oblige all persons entrusted by it with the processing and fulfillment of this Agreement ("Employees") accordingly (obligation to confidentiality, Art. 28 (3) lit. b GDPR) and shall instruct them about the special data protection obligations resulting from this Agreement as well as the existing instruction and/or purpose limitation and shall ensure compliance with the aforementioned obligation with due care. These obligations must be formulated in such a way that they remain in force even after termination of this Agreement or the employment relationship between the Employee and the Processor. The obligations shall be proven to the Controller in an appropriate manner upon request.

#### **5 Information Obligations Of The Processor**

14. In the event of disruptions, suspected data protection violations or breaches of contractual obligations of the Processor, suspected security-related incidents or other irregularities in the processing of personal data by the Processor, by persons employed by it within the scope of the contract or by third parties, the Processor shall inform the Controller in writing without undue delay. The same shall apply to audits of the Processor by the data protection supervisory authority. The notification of a personal data breach shall contain the following information as far as possible:

- a) a description of the nature of the personal data breach, including, to the extent possible, the categories and number of data subjects, the categories affected, and the number of personal data records affected;
  - (b) a description of the probable consequences of the injury; and
  - (c) a description of the measures taken or proposed by the Processor to address the breach and, where applicable, measures to mitigate its potential adverse effects.
15. The Processor shall immediately take the necessary measures to secure the data and to mitigate any possible adverse consequences for the data subject(s), inform the Controller thereof and request further instructions from the Controller.
  16. The Processor shall furthermore be obligated to provide the Controller with information at any time insofar as the Controller's data is affected by a violation pursuant to Paragraph 1.
  17. If necessary, the Processor shall support the Controller in fulfilling the Controller's obligations pursuant to Art. 33 and 34 GDPR in an appropriate manner (Art. 28 (3) sentence 2 lit. f GDPR). Notifications for the Controller pursuant to Art. 33 or 34 GDPR may only be made by the Processor after prior instruction by the Controller pursuant to § 3 of this Agreement.
  18. Should the Controller's data at the Processor be endangered by attachment or seizure, by insolvency or composition proceedings or by other events or measures of third parties, the Processor shall inform the Controller thereof without undue delay, unless the Processor is prohibited from doing so by court or administrative order. In this context, the Processor shall immediately inform all competent bodies that the decision-making authority over the data lies exclusively with the Controller (Art. 4 No. 7 GDPR).
  19. The Processor shall inform the Controller without undue delay of any significant changes to the security measures pursuant to § 4 para. 2 of this Agreement.
  20. The Processor and, if applicable, its representative shall keep a register of all categories of processing activities carried out on behalf of the Controller, which shall contain all information pursuant to Art. 30 (2) GDPR. The directory shall be made available to the Controller upon request.

## **6 Control Rights Of The Controller**

21. The Processor shall demonstrate to the Controller compliance with the obligations set forth in this Agreement by appropriate means.
22. If, in individual cases, inspections by the Controller or an auditor commissioned by the Controller are necessary, they shall be carried out during normal business hours without disrupting operations. The Processor may make the inspection dependent on prior notification with an appropriate lead time and on the signing of a confidentiality agreement regarding the data of other customers and the technical and organizational measures set up. If the auditor commissioned by the Controller is in a competitive relationship with the Processor, the Processor shall have a right of objection against him.
23. In order to carry out the control, the Processor only needs to permit such a person who is under a special obligation to maintain confidentiality, in particular with regard to

information about the Processor's operations, its equipment, the Processor's business secrets and security measures. If the control is not carried out by a person already known to the Processor, such person must prove his legitimation by the Controller in writing at least ten calendar days before the control is carried out.

24. The Controller shall document the inspection result and notify the Processor thereof. In the event of errors or irregularities which the Controller discovers, in particular, during the inspection of order results, he shall inform the Processor without undue delay. If facts are found during the inspection, the future avoidance of which requires changes to the ordered procedure, the Controller shall inform the Processor of the necessary procedural changes without undue delay.

## **7 Use Of Subprocessors**

25. Within the scope of its contractual obligations, the Processor shall in principle be authorized to establish further subcontracting relationships with subprocessors ("Subprocessor Relationship"). The Processor shall carefully select subprocessors according to their suitability and reliability. The Processor shall oblige them in accordance with the provisions of this Agreement and in doing so shall ensure that the Controller can exercise its rights under this Agreement, in particular its audit and control rights. Upon request, the Processor shall provide the Controller with evidence of the conclusion of the aforementioned agreements with its subprocessors.
26. The subprocessors currently working for the Processor in accordance with Paragraph 1 are listed in Annex 3. The Processor shall inform the Controller of any changes in a timely manner. The Controller may object within a reasonable period of time if an important reason under data protection law opposes the commissioning of the subprocessor.
27. If subprocessors in a third country are to be involved, this shall only be done under the conditions specified in § 1 para. 5 sentence 2.
28. A Subprocessor Relationship within the meaning of the above provisions does not exist if the Processor commissions third parties with services that are to be regarded as purely ancillary services. These include, for example, postal, transport and shipping services, security and cleaning services, as well as telecommunication services without any specific reference to services provided by the Processor to the Controller.

## **8 Requests And Rights Of Data Subjects**

29. The Processor shall support the Controller as far as possible with appropriate technical and organizational measures in fulfilling the Controller's obligations pursuant to Articles 12 to 22 and Articles 32 and 36 GDPR.
30. If a data subject asserts rights, such as the right to information, correction or deletion with regard to his/her data, directly against the Processor, the Processor shall forward the request to the Controller without undue delay, provided that an allocation to the Controller is possible according to the data subject. The Processor shall not be liable if the Data Subject's request is not answered, not answered correctly or not answered in a timely manner by the Controller.

## 9 Liability

31. The Controller and Processor are liable to data subjects in accordance with the provision set out in Art. 82 GDPR. The Processor shall coordinate any fulfillment of liability claims with the Controller.
32. The Processor shall indemnify the Controller against all claims asserted by data subjects against the Controller due to the breach of an obligation imposed on the Processor by the GDPR or this Agreement or due to the noncompliance or breach of a lawful instruction separately issued by the Controller.
33. The Processor does not have to indemnify the Controller if the data processing or measure giving rise to the Parties' liability was carried out on the basis of instructions from the Controller. The same shall apply to measures that have been previously coordinated with the Controller. Coordination shall also be deemed to have taken place if a provision in this Agreement has been inserted at the request of the Controller.
34. The Parties shall indemnify each other against liability to the extent that a Party proves that it is not responsible in any respect for the circumstance that caused the damage to a data subject. In all other respects, Art. 82(5) GDPR shall apply.

## 10 Final Provisions

35. Unless otherwise provided, declarations between the Parties shall be made in text form, whereby Email shall suffice.
36. The Agreement shall be governed by and construed in accordance with German law.
37. Should one of the above provisions be or become invalid or should a provision that is necessary in itself not be included, this shall not affect the validity of the remaining provisions. The Parties shall endeavor to find a mutually agreeable provision in this case.

## Entire Agreement

The Agreement constitutes the entire agreement between You and the Company regarding your use of the Application and supersedes all prior and contemporaneous written or oral agreements between You and the Company.

You may be subject to additional terms and conditions that apply when You use or purchase other Company's services, which the Company will provide to You at the time of such use or purchase.

## Contact Us

If you have any questions about this Agreement, You can contact Us:

- By email: [support@jumper.de](mailto:support@jumper.de)